

C.C.R.B. CASE CLOSING FORM

Investigator Assigned: Brendan Matz	Team: Team # 9	CCRB Case # : 9905319	☒ Force	☐ Discourtesy
			☐ Abuse	☐ O.L. ☒ Injury
Date/Time of Incident: 11/21/1999 3:50 PM	Location of Incident: § 87(2)(b)		Pct. of Occurrence: 77	Date S.O.L. Expires: 05/21/2001
Date/Time C/V Reported: 11/21/1999 4:41 PM	C/V Reported At: IAB	How C/V Reported: Phone		Date/Time Received at CCRB: 12/02/1999 1:25 PM

Complainant/Victim	Type	Home Address
1. § 87(2)(b)	Comp/Witness	§ 87(2)(b)
2. § 87(2)(b)	Victim	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Glenn J. Diresto	05257	902820	077 PCT
2. POM Mervin K. Bennett	23183	920019	077 PCT
3. POM Matthew C. Boder	02348	920038	077 PCT
4. POM Anthony R. Pagnotta	10817	920691	077 PCT
5. POM Thierry . Presume	18677	921687	077 PCT

Officer(s)	Allegation	Recommendation
A. POM Anthony R. Pagnotta	Force: PO Anthony Pagnotta used physical force against § 87(2)(b)	§ 87(2)(g)
B. POM Anthony R. Pagnotta	Force: PO Anthony Pagnotta used pepper spray against § 87(2)(b)	
C. POM Mervin K. Bennett	Force: PO Mervin Bennett used physical force against § 87(2)(b)	
D. POM Matthew C. Boder	Force: PO Matthew Boder used physical force against § 87(2)(b)	
E. POM Thierry . Presume	Force: PO Thierry Presume used physical force against § 87(2)(b)	
F. SGT Glenn J. Diresto	Force: SGT Glenn Diresto used physical force against § 87(2)(b)	

Synopsis

While performing routine patrol in the 77th precinct, SGT Glenn Diresto saw § 87(2)(b) standing in front of § 87(2)(b). Based on a review of reports he conducts monthly, SGT Diresto knew that § 87(2)(b) had an active warrant for his arrest. SGT Diresto and PO Boder detained § 87(2)(b) briefly, while they waited for PO Mervin Bennett to confirm the identity of § 87(2)(b). SGT Diresto knew that PO Bennett had arrested § 87(2)(b) on a prior occasion. After PO Bennett positively identified § 87(2)(b) a group of five uniformed police officers attempted to take § 87(2)(b) into custody. By his own admission, § 87(2)(b) resisted arrest, refusing to be handcuffed by the officers. In the struggle to handcuff § 87(2)(b) PO Anthony Pagnotta used his pepper spray against § 87(2)(b). § 87(2)(g)

Summary of Complaint

The complaint was filed by phone by § 87(2)(b) black female who works as a § 87(2)(b) at § 87(2)(b). § 87(2)(b) witnessed part of the incident from the front window of her mother's house at § 87(2)(b). She called 911 on November 21, 1999, at 3:58 PM, to report that police officers were beating up an individual on § 87(2)(b) (see Encl. 28a-b & 38d). § 87(2)(b) hung up without identifying herself. An IAB investigator later identified § 87(2)(b) as the 911 caller by utilizing the Automatic Location Identification/Automatic Name Identification (ALI/ANI) System (see Encl. 26a-c).

The allegations of police misconduct were referred to the Internal Affairs Bureau, and a log synopsis report was generated (log § 87(2)(b) Encl. 9a-c). IAB did not conduct a full investigation of the allegations made by the 911 caller. However, IAB investigator PO Cruz contacted § 87(2)(b) and took a statement. According to the Unusual Occurrence Report (UF-49) drafted in connection with the incident, § 87(2)(b) told PO Cruz that she saw four police officers beating up a handcuffed individual in the rear of RMP #2330 (see Encl. 26a-c). Marked police van #5378 was also on the scene. Duty Captain James Albrecht identified the victim from police records as § 87(2)(b) and conducted a preliminary investigation.

§ 87(2)(b) was interviewed in person for the CCRB investigation on December 20, 1999 (see Encl. 11a-c). § 87(2)(g)

§ 87(2)(g) states that on November 21, 1999, at approximately 3:50 PM, she was at her mother's house at § 87(2)(b). § 87(2)(b) looked out a window facing onto § 87(2)(b) and saw a marked police van speeding up § 87(2)(b). According to § 87(2)(b), the viewing conditions were advantageous: it was still light out; she was looking out the window closest to where the incident occurred; she was about three car lengths away from where the incident occurred; and her view was not obstructed by anything.

According to § 87(2)(b) the police van stopped behind a marked RMP that was parked in front of § 87(2)(b). A short white female officer with curly blond hair pulled a § 87(2)(b) black male out of the back passenger's side. The black male was thin, of average height, and was wearing a jacket. Another officer assisted the female officer. At least two of the officers from the police van started to hit the black male with their hands. A bald black male officer struck the victim with his right hand several times. § 87(2)(b) states that she is not sure where the officers hit the victim. According to § 87(2)(b) the victim appeared to have his hands behind his back, but she did not see any handcuffs. § 87(2)(b) could not hear what the officers were saying and could not hear what the victim was saying. § 87(2)(b) states that she yelled to the officers out the window, saying, "Stop, leave him alone. He's not doing anything." § 87(2)(b) noticed that five uniformed officers were on top of the victim. She states that she does not know how the officers went to the ground with the victim. Furthermore, she indicates that she does not know whether the victim was on his back or on his stomach and that she does not know if the victim was kicking the officers.

§ 87(2)(b) states that the officers picked the victim up and tried to put him into the police vehicle. The victim started to shout, "Help me, help me," and pushed against the running board with his foot, preventing himself from being put into the car. Eventually the officers got the prisoner into the car and left the scene.

§ 87(2)(b) states that she cannot provide detailed descriptions of any of the officers because she did not look into their faces. § 87(2)(b) states that she does not want to have anything to do with police officers.

Duty Captain Albrecht identified § 87(2)(b) as the victim by cross-referencing the location and time provided by § 87(2)(b) with 77th precinct arrest records (see Encl. 26a-c). Captain Albrecht observed the victim, but because the victim did not make any allegations of police misconduct at that time, he was not interviewed.

§ 87(2)(b) was interviewed in person for the CCRB investigation on December 22, 1999 (see Encl. 14a-d). § 87(2)(b) states that on November 21, 1999, at approximately 3:50 PM, he was hanging out with some friends in the vicinity of § 87(2)(b). § 87(2)(b) refused to provide the names of his friends.

According to § 87(2)(b), two white male uniformed police officers in a marked police car drove up and called him over to the car. When § 87(2)(b) complied, the officers placed § 87(2)(b) in the back of the car and called for another unit to respond. Six additional uniformed officers, including a bald black male, arrived on the scene. The bald black male officer removed § 87(2)(b) from the back of the vehicle, and the officers tried to handcuff § 87(2)(b). § 87(2)(b) admits that he resisted arrest by swinging his arms and preventing the officers from putting his hands behind his back. In response to § 87(2)(b)'s resistance, the officers brought § 87(2)(b) to the ground. While on the ground, § 87(2)(b) continued to resist arrest by pulling his arms up in front of him, beneath his body, and clenching his fists. § 87(2)(b) states that he was pepper sprayed by more than one officer and also punched and kicked. § 87(2)(b) states that he has no idea which officers pepper sprayed him or punched and kicked him. § 87(2)(b) states that he eventually stopped resisting and allowed himself to be handcuffed while lying on the ground. § 87(2)(b) did not sustain any injuries as a result of the incident. § 87(2)(b) admits that after the officers placed him in the back of the police vehicle again, he tried to kick out the windows. § 87(2)(b) was laughing throughout the interview as he described the incident. He denies being involved in the § 87(2)(b).

Results of Investigation

The relevant Sprint print out and its corresponding radio run tape-recording indicate that at 3:49 PM on November 21, 1999, the 77th precinct tracer unit transmitted that they had an individual stopped in front of § 87(2)(b) (see Encl. 28a-b). The print out also shows that the 77th precinct sergeant was on the scene. At approximately 3:57 PM (about 8 minutes later), a 10-85 call for crowd control assistance was transmitted. At approximately 4:27 PM (about 30 minutes later), it was indicated that the individual was in police custody.

The 77th precinct roll call identifies SGT Glenn Diresto as the sergeant on the scene (see Encl. 33a-I). Captain Albrecht, in his Unusual Occurrence Report drafted in connection with the incident, indicates that he interviewed SGT Diresto on November 21, 1999 (see Encl. 26a-c). SGT Diresto informed Captain Albrecht that he and his partner, PO Matthew Boder, stopped § 87(2)(b) because he had an active warrant. SGT Diresto informed Captain Albrecht that § 87(2)(b) violently resisted arrest and that pepper spray was used to subdue him. SGT Diresto also informed the investigating captain that § 87(2)(b) attempted to kick out the windows of the police vehicle.

SGT Diresto was interviewed at CCRB on July 24, 2000 (see Encl. 22a-b). He states that he approached § 87(2)(b) because he knew that the individual had an active warrant. In connection with his supervisory duties, SGT Diresto reviews all of the arrest paperwork generated in the precinct each month and determines whether these arrested individuals have active warrants. However, SGT Diresto was not entirely sure that he had stopped the right person, so he called PO Mervin Bennett to the scene, because he knew that PO Bennett had arrested § 87(2)(b) on a prior occasion.

When PO Bennett arrived on the scene in a marked tracer van, along with PO Thierry Presume and PO Anthony Pagnotta, he positively identified the suspect. When SGT Diresto told § 87(2)(b) to step out of the car and informed him that he was under arrest, § 87(2)(b) began to "fight" the officers by trying to run and trying to push the officers. § 87(2)(b) was also swinging his arms. During the struggle, § 87(2)(b) went down to the ground. While on the ground, § 87(2)(b) continued to resist by moving around a lot and holding his arms close beneath his body. When § 87(2)(b) refused to comply with SGT

Diresto's orders for him to place his hands behind his back, PO Pagnotta attempted to use his pepper spray on the resisting individual. Because the pepper spray canister was defective, the product did not spray outwards; instead, it just dribbled out. However, some of the product did make contact with [§ 87(2)(b)] face. The officers then forcibly brought his arms behind his back. After standing [§ 87(2)(b)] up, the officers placed him back into the police vehicle. While inside the police vehicle, [§ 87(2)(b)] lay on his back and attempted to kick out the back window of the patrol car at least three times. The window did not shatter but jumped out of its track. [§ 87(2)(b)] stopped kicking on his own. On the way to the precinct [§ 87(2)(b)] did not make any allegations of police misconduct and did not complain of any injuries. At the precinct EMS responded to cleanse his eyes of the pepper spray. [§ 87(2)(b)] was laughing and joking with the officers at the precinct.

PO Matthew Boder, SGT Diresto's operator on the evening of the incident, was interviewed at CCRB on July 18, 2000 (see Encl. 16a-b). [§ 87(2)(g)] He states that [§ 87(2)(b)] swung his arms, tried to get away, and refused to be handcuffed. During the struggle [§ 87(2)(b)] went to the ground and continued to resist. PO Boder denies that any officers punched or kicked [§ 87(2)(b)].

PO Mervin Bennett, the officer SGT Diresto called to the scene to identify [§ 87(2)(b)] was interviewed at CCRB on July 19, 2000 (see Encl. 18a-b). He states that when he arrived on the scene, [§ 87(2)(b)] was sitting in the back of the police vehicle without handcuffs on. PO Bennett recognized [§ 87(2)(b)] from a previous arrest, during which [§ 87(2)(b)] ran from PO Bennett. When [§ 87(2)(b)] was told to exit the vehicle because he was to be placed under arrest, [§ 87(2)(b)] fell immediately to the ground and held his arms close to his body, so the officers could not handcuff him. PO Bennett did not know if [§ 87(2)(b)] had been frisked for weapons. PO Bennett and the other officers pulled at [§ 87(2)(b)] arms in an attempt to handcuff him. None of the officers punched or kicked [§ 87(2)(b)]. PO Bennett states that he believes PO Pagnotta used pepper spray against [§ 87(2)(b)]. PO Bennett did not see [§ 87(2)(b)] try to kick out the windows of the RMP. According to PO Bennett, [§ 87(2)(b)] was joking around at the precinct and started to do push-ups in the holding cell.

PO Thierry Presume, one of the officers who according to the roll call arrived in the tracer van with PO Bennett, was interviewed at CCRB on August 17, 2000 (see Encl. 24a-b). [§ 87(2)(g)] He states that [§ 87(2)(b)] was throwing his arms and trying to kick at the officers. He denies that any officers punched or kicked [§ 87(2)(b)]. He too states that the officers worked together to get [§ 87(2)(b)] hands behind his back and eventually succeeded. PO Presume states that [§ 87(2)(b)] was joking with the officers at the precinct.

PO Anthony Pagnotta, the third officer in the tracer van, was interviewed at CCRB on July 24, 2000 (see Encl. 20a-b). [§ 87(2)(b), § 87(2)(g)] He states that both he and SGT Diresto ordered [§ 87(2)(b)] to put his arms behind his back. When [§ 87(2)(b)] did not comply, PO Pagnotta warned him that he would pepper spray him if he did not do so. When [§ 87(2)(b)] continued to refuse compliance, PO Pagnotta tried to spray him with his pepper spray. However, because the pepper spray canister was defective, the product just dribbled out. Enough of the pepper spray got on the suspect to cause him to lift his arms out of the resistance posture and to place his hands to his eyes. When [§ 87(2)(b)] lifted his hands to his face, the officers succeeded in handcuffing him. PO Pagnotta remembers [§ 87(2)(b)] being calm and polite at the precinct.

All five officers indicate that [§ 87(2)(b)] made comments at the scene of the incident regarding [§ 87(2)(b)]. According to Captain Albrecht's Unusual Occurrence Report, [§ 87(2)(b)] has been recorded [§ 87(2)(b)].

[§ 87(2)(g), § 87(2)(b)]

Numerous attempts were made to show [§ 87(2)(b)] individual photos of the five officers. However, [§ 87(2)(b)] could not be contacted by phone or by mail (see Encl. 38a-d). [§ 87(2)(b)] the complainant in the case, was shown individual photos of the five officers (see Encl. 12a-b & 13a-e). She recognized three of the officers: SGT Diresto, PO Presume, and PO Bennett.

During the photo procedure, she states that she saw all three of these officers with their hands on § 87(2)(b). However, she states that she PO Bennett was the most aggressive, as he jumped out of the van like a “big bad bull.” She states that she thinks she saw PO Bennett strike § 87(2)(b) but that she cannot be sure. § 87(2)(b) also states that she might have been mistaken about a female officer being on the scene.

The Medical Treatment of Prisoner Report indicates that EMS treated § 87(2)(b) at the precinct (see Encl. 27). The report notes that § 87(2)(b) did not have any injuries but had been exposed to pepper spray. The 77th Precinct Command Log also indicates that § 87(2)(b) was involved in a struggle with police and was pepper sprayed. No further injury is noted (see Encl. 31).

In the Unusual Occurrence Report, Captain Albrecht notes that he observed § 87(2)(b) and did not see any injuries. Captain Albrecht took photos of § 87(2)(b) but these photos are of poor quality (see Encl. 26d). An attempt was made to obtain § 87(2)(b) arrest photo; however, the negative for the photo could not be found at the NYPD photo unit (see Encl. 38a-d).

The NYPD Complaint Report indicates that § 87(2)(b) was returned on an active warrant for docket § 87(2)(b) (see Encl. 29a-b). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] The report also notes that § 87(2)(b) resisted arrest and tried to kick out the windows of a police vehicle.

The NYPD On-line Booking Sheet repeats the narrative in the Complaint Report and indicates that § 87(2)(b) was charged § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

The complainant, § 87(2)(b) does not know the victim and was not directly involved in the incident. § 87(2)(g) Firstly, § 87(2)(b) admits in her CCRB interview that she does not like police officers. She states that she did not look at the officers closely because she wants nothing to do with the police. § 87(2)(g) § 87(2)(b), § 87(2)(g) she later admits that she could not see what was happening when § 87(2)(b) was on the ground. § 87(2)(b), § 87(2)(g) § 87(2)(b), § 87(2)(g)

Allegation A addresses § 87(2)(b)'s and § 87(2)(b)'s claim that PO Anthony Pagnotta used excessive physical force against § 87(2)(b). In her CCRB interview, § 87(2)(b) states that she saw all of the officers on the scene striking § 87(2)(b) while he was handcuffed and compliant. However, when she was shown individual photos of the officers on the scene, § 87(2)(b) did not recognize PO Pagnotta. Furthermore, § 87(2)(b) states that he does not know which of the officers, if any, were punching him. § 87(2)(b), § 87(2)(g) § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g) All five police officers on the scene state that § 87(2)(b) resisted arrest by moving his arms and body, lying on the ground with

his arms pulled up close to his body, and refusing to be handcuffed. § 87(2)(b) admits that he performed these actions in the manner described by the police officers. According to New York Penal Law section 35.27, an individual may not use force to resist arrest under any circumstances (see Encl. 1). According to NY Penal Law section 35.50 and the NYPD Patrol Guide section 203-11 (see Encl. 1 & 2, respectively), a police officer may use the amount of force necessary to counter this resistance. PO Pagnotta and the four other officers on the scene admit that they used a minimal amount of force in attempt to subdue the resisting prisoner. § 87(2)(b) did not complain of any injury and did not make any allegations of police misconduct. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation B addresses § 87(2)(b)'s claim that PO Anthony Pagnotta used excessive force when he sprayed him with pepper spray. § 87(2)(b) states that he does not know which officer sprayed him with pepper spray. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) admits that he actively resisted arrest by swinging his arms and refusing to be handcuffed. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

According to NYPD Patrol Guide section 212-95, a police officer may use pepper spray in situations where "physical presence and/or verbal commands have not been, or would not be, effective in overcoming physical resistance" (see Encl. 3). § 87(2)(g), § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

Allegation C addresses § 87(2)(b) and § 87(2)(b)'s claim that PO Mervin Bennett used excessive physical force against § 87(2)(b). In her CCRB interview, § 87(2)(b) states that she saw all of the officers on the scene striking § 87(2)(b) while he was handcuffed and compliant. When she was shown individual photos of the officers on the scene, § 87(2)(b) recognized PO Bennett, but she could not say with certainty that she saw PO Bennett strike § 87(2)(b). Furthermore, § 87(2)(b) states that he does not know which of the officers, if any, were punching him. PO Bennett denies striking § 87(2)(b). § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g) All five police officers on the scene state that § 87(2)(b) resisted arrest by moving his arms and body, lying on the ground with his arms pulled up close to his body, and refusing to be handcuffed. § 87(2)(b) admits that he performed these actions in the manner described by the police officers. According to New York Penal Law section 35.27, an individual may not use force to resist arrest under any circumstances. According to NY Penal Law section 35.50 and the NYPD Patrol Guide section 203-11, a police officer may use the amount of force necessary to counter this resistance. PO Bennett and the four other officers on the scene admit that they used a minimal amount of force in an attempt to subdue the resisting prisoner. § 87(2)(b) did not complain of any injury and did not make any allegations of police misconduct. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation D addresses § 87(2)(b) and § 87(2)(b)'s claim that PO Matthew Boder used excessive physical force against § 87(2)(b). In her CCRB interview, § 87(2)(b) states that she saw all of the officers on the scene striking § 87(2)(b) while he was handcuffed and compliant. When she was shown individual photos of the officers on the scene, § 87(2)(b) did not recognize PO Boder. § 87(2)(b) states that he does not know which of the officers, if any, were punching him.

PO Boder denies striking § 87(2)(b), § 87(2)(g)

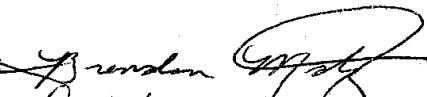
Allegation E addresses § 87(2)(b) and § 87(2)(b)'s claim that PO Thierry Presume used excessive physical force against § 87(2)(b). In her CCRB interview, § 87(2)(b) states that she saw all of the officers on the scene striking § 87(2)(b) while he was handcuffed and compliant. When she was shown individual photos of the officers on the scene, § 87(2)(b) recognized PO Presume, but she could not say with certainty that she saw him strike § 87(2)(b). § 87(2)(b) states that he does not know which of the officers, if any, were punching him. **PO Presume denies striking** § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

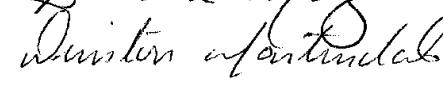
Allegation F addresses § 87(2)(b) and § 87(2)(b)'s claim that SGT Glenn Diresto used excessive physical force against § 87(2)(b). In her CCRB interview, § 87(2)(b) states that she saw all of the officers on the scene striking § 87(2)(b) while he was handcuffed and compliant. When she was shown individual photos of the officers on the scene, § 87(2)(b) recognized SGT Diresto, but she could not say with certainty that she saw him strike § 87(2)(b). § 87(2)(b) states that he does not know which of the officers, if any, were punching him. **SGT Diresto denies striking** § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Investigator: 

Date: 12-19-00

Supervisor: 

Date: 12/20/00

Reviewed by:

Date:

Reviewed by:

Date: